

HEADNOTE

“When deciding on a request to change the language of proceedings into the language of the patent on grounds of fairness, all relevant circumstances shall be taken into account. Relevant circumstances should primarily be related to the specific case and the position of the parties, in particular the position of the defendant. If the outcome of balancing of interests is equal, the position of the defendant is the decisive factor.”

COURT

Court of Appeal Luxembourg

PROCEEDINGS

Procedural order

PATENT

EP 2 697 391

Method and product for localised or spatial detection of nucleic acid in a tissue sample

KEYWORDS

Change of language of proceedings (Art.49...

SUMMARY

The Court of Appeal Luxembourg issued a procedural order. The patent at issue relates to a method and product for localised or spatial detection of nucleic acid in a tissue sample. According to the headnotes of the decision, when ruling on a request to change the language of proceedings based on fairness grounds, courts must consider all relevant circumstances, particularly those specific to the case and the parties' positions, and if the interests balance equally, the defendant's position becomes the deciding factor.